

Parliament assembled, and by the authority of the same, as follows :—

Payment of travelling expenses incurred by members of local fisheries committees 51 & 52 Vict. c. 54.

1. It shall be lawful for a local fisheries committee constituted under the Sea Fisheries Regulation Act, 1888, to repay to any member of the committee the amount of any travelling expenses necessarily incurred by him—

(a) in attending any meeting of the committee or any meeting convened by the Minister of Agriculture and Fisheries under section nine of that Act;

(b) in carrying out any inspection necessary for the exercise of the powers, or the discharge of the duties, of the committee;

and any such amount repaid by a local fisheries committee to any member thereof shall be treated as part of the expenses of the committee.

Short title, construction and citation.

2. This Act may be cited as the Sea Fisheries Regulation (Expenses) Act, 1930, and shall be construed as one with the Sea Fisheries Regulation Acts, 1888 to 1894, and those Acts and this Act may be cited together as the Sea Fisheries Regulation Acts, 1888 to 1930.

CHAPTER 42.

An Act to amend the law with respect to Customs in the Isle of Man. [1st August 1930.]

BE it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows :—

Repeal of lace duty. 20 & 21 Geo. 5. c. 1.

1.—(1) The duty of customs chargeable on lace removed or imported into the Isle of Man shall cease to be charged, and accordingly section four of the Act of 1929 is hereby repealed so far as it relates to lace.

(2) This section shall be deemed to have had effect as from the first day of July, nineteen hundred and thirty

Duties on spirits.

2.—(1) On and from the third day of June nineteen hundred and thirty, in lieu of the duties on

customs theretofore payable on spirits, there shall, until the first day of August, nineteen hundred and thirty-one, be payable on spirits removed or imported into the Isle of Man—

- (a) in the case of spirits of any description, being Empire products produced in Great Britain or Northern Ireland, a duty of three pounds, twelve shillings and sixpence for every gallon computed at proof, whether in cask or bottle;
- (b) in the case of spirits of the descriptions specified in the first column of Part I of the Schedule to this Act, being Empire products produced elsewhere than in Great Britain or Northern Ireland, duties at the preferential rates respectively specified in the second column of Part I of that Schedule;
- (c) in the case of spirits of the descriptions so specified, not being Empire products, duties at the full rates respectively specified in the third column of Part I of that Schedule;
- (d) in the case of spirits of the descriptions specified in the first column of Part II of that Schedule, which have been warehoused for a period of two years and less than three years, in addition to the duties payable under the foregoing provisions of this subsection, duties at the rates respectively specified in the second column of Part II of that Schedule;
- (e) in the case of spirits of the descriptions so specified in Part II of that Schedule, which have not been warehoused or have been warehoused for a period of less than two years, in addition to the duties payable under paragraph (a), paragraph (b) or paragraph (c) of this subsection, duties at the rates respectively specified in the third column of Part II of that Schedule.

(2) In this section the expression “ Empire products ” means such Empire products as are entitled to a preferential rate under section five of the Act of 1919.

(3) The Act of 1898 and section two of the Act of 1909 are hereby repealed as from the third day of June, nineteen hundred and thirty.

3. There shall be payable on and from the third day of June, nineteen hundred and thirty, until the first

9 & 10
Geo. 5. c. 74.
61 & 62 Vict.
c. 27.
9 Edw. 7.
c. 45.
Additional
duties on
ale and beer.

day of August, nineteen hundred and thirty-one, such additional duties of customs on ale or beer removed or imported into the Isle of Man as are sufficient to make, when added to the existing duties, a duty at the following rate—

For every thirty-six gallons where the £ s. d.
 worts thereof were before fermentation
 of a specific gravity of one thousand
 and fifty-five degrees - - - 3 17 0

with a proportionate increase or decrease according to the specific gravity of the worts thereof before fermentation.

Duty on
hydrocarbon
oils.

4.—(1) On and from the twenty-eighth day of March, nineteen hundred and thirty, a duty of customs at the rate of fourpence per gallon shall be payable on all hydrocarbon oils removed or imported into the Isle of Man (not being oils manufactured or produced in Great Britain or Northern Ireland otherwise than by refining hydrocarbon oils imported into Great Britain or Northern Ireland).

(2) There shall be allowed from the duty payable under this section a rebate at the rate of fourpence per gallon on the delivery for home consumption of any goods other than light oils.

(3) If, on an application made for the purposes of this subsection by the owner of a fishing boat entered in the fishing boat register, it appears to the satisfaction of the Commissioners of Customs and Excise (hereafter in this section referred to as “the Commissioners”) that the applicant has, at any time within the period of six months preceding the date of his application or within such longer period preceding that date as the Commissioners may in any special case allow, used any quantity of hydrocarbon oil on board the boat, he shall be entitled to obtain from the Commissioners repayment of any duty which has been paid in respect of the oil so used :

Provided that—

- (a) an application for the purposes of this subsection must be made in such manner as the Commissioners may prescribe; and
- (b) no person who has previously made an application under this subsection for repayment of duty shall be entitled to make a further

application until the expiration of at least three months from the date on which the last preceding application was made.

(4) The Commissioners may make regulations with respect to the collection of the duty imposed by this section, and may for that purpose apply, with the necessary modifications, to hydrocarbon oils removed or imported into the Isle of Man any enactments applicable with respect to duties on hydrocarbon oils imported into Great Britain or Northern Ireland.

(5) For the purposes of this section—

- (a) the expression “hydrocarbon oils” means petroleum oils, coal tar, and oils produced from coal, shale, peat or any other bituminous substance, and all liquid hydrocarbons;
- (b) the expression “light oils” means hydrocarbon oils of which not less than fifty per cent. by volume distils at a temperature not exceeding one hundred and eighty-five degrees Centigrade, or of which not less than ninety-five per cent. by volume distils at a temperature not exceeding two hundred and forty degrees Centigrade, or which give off an inflammable vapour at a temperature of less than 22·8 degrees Centigrade when tested in manner prescribed by the Acts relating to petroleum;
- (c) the expression “fishing boat” means a boat used for the purposes of fishing by a person gaining a substantial part of his livelihood thereby.

The method of testing oils for the purpose of ascertaining whether they comply with the provisions of paragraph (b) of this subsection relating to the distillation of a certain volume thereof at a certain temperature shall be such as the Commissioners may prescribe.

5.—(1) The duties of customs set out in the first column of the following table, imposed on goods removed or imported into the Isle of Man by the respective enactments set out in the second column of that table, shall continue to be payable as from the first day of August, .

Continuation of certain duties.

nineteen hundred and thirty, until the first day of August, nineteen hundred and thirty-one :—

TABLE.

	Duty.	Enactment imposing duty.
18 & 19 Geo. 5. c. 33.	Duty on buttons - - -	Section 17 of the Act of 1928.
15 & 16 Geo. 5. c. 56.	Duties on cinematograph films -	Section 6 of the Act of 1925 as amended by section 12 of the Act of 1927 and section 14 of the Act of 1928.
17 & 18 Geo. 5. c. 20.	Duties on clocks and watches and component parts of clocks and watches.	Section 6 of the Act of 1925.
14 & 15 Geo. 5. c. 24.	Duties on cocoa - - -	Section 4 of the Act of 1924.
	Duty on enamelled hollow-ware -	Section 17 of the Act of 1928.
	Duties on hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section 5 of the Act of 1925.
	Duty on hop oil - - -	Section 3 of the Act of 1929.
	Duties on matches - - -	Section 7 of the Act of 1927.
	Duty on mechanical lighters, and component parts of mechanical lighters.	Section 8 of the Act of 1928.
16 & 17 Geo. 5. c. 27.	Duties on motor cars, including motor bicycles and motor tri-cycles, and their accessories and component parts.	Section 6 of the Act of 1925 as amended by section 6 of the Act of 1926 and section 11 of the Act of 1927.
	Duties on— (a) musical instruments, including gramophones, pianolas, and other similar instruments; (b) accessories and component parts of musical instruments, and records and other means of reproducing music.	Section 6 of the Act of 1925.
	Duty on translucent or vitrified pottery.	Section 14 of the Act of 1927.
	Duties on silk or artificial silk -	Section 7 of the Act of 1925 as amended by section 8 of the Act of 1926.
	Duty on sweets - - -	Section 2 of the Act of 1929.
	Duties on tobacco - - -	Section 6 of the Act of 1927.
	Duties on wines - - -	Section 1 of the Act of 1927.

(2) The duties of customs on cutlery, gloves and mantles for incandescent lighting removed or imported into the Isle of Man, imposed by section fourteen of the Act of 1926, shall continue to be payable as from the first day of August, nineteen hundred and thirty, until the twenty-second day of December, nineteen hundred and thirty.

6.—(1) In this Act a reference to an Act of any year shall be deemed to be a reference to the Isle of Man (Customs) Act of that year. Interpretation and short title.

(2) This Act may be cited as the Isle of Man (Customs) Act, 1930.

SCHEDULE.

Section 2.

PART I.

ORDINARY CUSTOMS DUTIES ON SPIRITS NOT BEING SPIRITS PRODUCED IN GREAT BRITAIN OR NORTHERN IRELAND.

1. Description of Spirits.	2. Preferential Rates.		3. Full Rates.	
	In Cask.	In Bottle.	In Cask.	In Bottle.
	£ s. d.	£ s. d.	£ s. d.	£ s. d.
For every gallon computed at proof of—				
Brandy or rum . . .	3 12 10	3 13 10	3 15 4	3 16 4
Imitation rum or geneva . .	3 12 11	3 13 11	3 15 5	3 16 5
Unsweetened spirits other than those already enumerated . .	3 12 11	3 12 11	3 15 5	3 15 5
For every gallon of perfumed spirits	5 16 0	5 17 0	6 0 0	6 1 0
For every gallon of liqueurs, cordials, mixtures, and other preparations in bottle entered in such manner as to indicate that the strength is not to be tested	—	4 19 1	—	5 2 5
For every gallon computed at proof of spirits of any description not heretofore mentioned, including naphtha and methylic alcohol purified so as to be potable, and mixtures and preparations containing spirit	3 12 11	3 13 11	3 15 5	3 16 5

PART II.

ADDITIONAL CUSTOMS DUTIES IN RESPECT OF ALL IMMATURE SPIRITS.

1. Description of Spirits.	2. Where the Spirits have been warehoused for a period of two years and less than three years.	3. Where the Spirits have not been warehoused, or have been warehoused for a period of less than two years.
	s. d.	s. d.
For every gallon computed at proof of spirits of any description except perfumed spirits - - - -	1 0	1 6
For every gallon of liqueurs, cordials, mixtures and other preparations entered in such manner as to indicate that the strength is not to be tested - - - -	1 4	2 0
For every gallon of perfumed spirits	1 7 "	2 5

CHAPTER 43.

An Act to make provision for the regulation of traffic on roads and of motor vehicles and otherwise with respect to roads and vehicles thereon, to make provision for the protection of third parties against risks arising out of the use of motor vehicles and in connection with such protection to amend the Assurance Companies Act, 1909, to amend the law with respect to the powers of local authorities to provide public service vehicles, and for other purposes connected with the matters aforesaid.

[1st August, 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present